



Book	Policy Manual
Section	Policies for the Board 11/18/20
Title	Copy of Vol. 37, No. 2 - January 2019 New USE OF SOCIAL MEDIA
Code	po7544
Status	First Reading

7544 - **USE OF SOCIAL MEDIA**

Technology is a powerful tool to enhance education, communication, and learning.

The Board of Education authorizes the use of social media to promote community involvement and facilitate effective communication with students, parents/guardians, staff **(X)** (including District-approved volunteers) **[END OF OPTION]**, and the general public. Social media is defined in Bylaw 0100.

The Superintendent is charged with designating the District-approved social media platforms/sites ~~()~~, which shall be listed on the District's website.

~~[] In designating District-approved social media platforms/sites, the Superintendent shall specify which platforms/sites are appropriate for use at the District level, the building or department level, for extra-curricular activities, and at the individual level by employees for professional purposes. **[END OF OPTION]**~~

It is critical that students be taught how to use social media platforms safely and responsibly. Social media (as defined in Bylaw 0100) are a powerful and pervasive technology that affords students and employees the opportunity to communicate for school and work purposes, and to collaborate in the delivery of a comprehensive education. Federal law mandates that the District provide for the education of students regarding appropriate online behavior, including interacting with other individuals on social networking websites and in chat rooms, and regarding cyberbullying awareness and response. See School Board Policy 7540.03 – Student Technology Acceptable Use and Safety.

The District recognizes that employees may use social media for personal, as well as professional reasons. The District neither encourages nor discourages employees' use of social media for personal purposes. The District regulates employees' use of social media for purposes related to their District assignment to the same extent as it regulates any other form of employee communication in that regard.

[DRAFTING NOTE: Districts should consult with their legal counsel concerning the First Amendment implications associated with using social media that permits public comment. Select Option 1 or 2.]

[X-] [OPTION #1]

The District uses approved social media platforms/sites as interactive forms of communication.

[X] [OPTION #2]

The District uses approved social media platforms/sites as interactive forms of communication and **(X)** accepts **()** invites **()** welcomes public comments. The District-approved social media platforms/sites are considered limited public forums. As such, the District will monitor posted comments to verify they are on-topic, consistent with the posted rules for use of the forum, and in compliance with the platform/site's applicable terms of service. The Board's review of posted comments will be conducted in a viewpoint neutral manner, and consistent with State and Federal law. Employees' personal posts on the public platforms/sites are limited/restricted to matters of general public interest that are not related to the employee's specific employment and wholly unrelated to the employee's job responsibilities (i.e., matters where it is clear the individual is posting not in an official capacity, but simply as a member of the public). Employees in administrative positions are ordinarily not permitted to post personal comments on matters of general public interest because to do so could be misconstrued as Board-sponsored speech.

[END OF OPTIONS #1 AND # 2]

Each District-approved social media account/site must contain a statement that specifies its purpose(s) and limits those who access the social media account/site to use of the account/site only for that/those purpose(s), and in accordance with any specified procedures, and applicable terms of service. Users are personally responsible for the content of their posts.

Social Media for Instructional and School-Sponsored Activities

Staff (including District-approved volunteers) may, with prior approval/authorization from the ☐ Principal, ☒ Superintendent, ☐ or designee, use social media platforms/sites for classroom instruction or school-sponsored activities. When a staff member uses a District-approved social media platform/site for an educational purpose, it will be considered an educational activity and will not be considered a limited public forum. Students' use of District-approved social media platforms/sites must be consistent with the Student Code of Conduct, Policy 5722/AG 5722 - School-Sponsored Publications and Productions, Policy 7540.03/AG 7540.03 – Student Technology Acceptable Use and Safety, the instructor's directions/procedures, and the platform/site's applicable terms of service. Students are prohibited from posting or releasing personal information about students, employees, and volunteers through District-approved social media without appropriate consent.

[DRAFTING NOTE: Select either Option 3 or 4, or, at the District's discretion, choose neither option.]

☒ [OPTION #3]

Staff members ☒ (including District-approved volunteers) **[END OF OPTION]** must provide parents of students involved in a school-sponsored activity the ability to opt out of having their child use social media platforms/sites for communication purposes associated with that activity, and arrange for an alternative method of communicating with the participating student concerning the school-sponsored activity.

☐ [OPTION #4]

Staff members ☐ (including District-approved volunteers) **[END OF OPTION]** must obtain parental consent for students to participate in the use of social media platforms/sites related to a school-sponsored activity. If a parent refuses to provide such consent, the staff member must arrange for an alternative method of communicating with the participating student concerning the school-sponsored activity.

~~[END OF OPTIONS #3 AND #4]~~

Expected Standards of Conduct on District-Approved Social Media

Employees ☒ and District-approved volunteers **[END OF OPTION]** who access District-approved social media platforms are expected to conduct themselves in a respectful, courteous, and professional manner. Students, parents, and members of the general public who access District-approved social media platforms are similarly expected to conduct themselves in a respectful, courteous, and civil manner.

District-approved social media sites shall not contain content that is obscene; is vulgar and lewd such that it undermines the school's basic educational mission; is libelous or defamatory; constitutes hate speech; promotes illegal drug use; is aimed at inciting an individual to engage in unlawful acts or to cause a substantial disruption or material interference with District operations; or interferes with the rights of others. The District may exercise editorial control over the style and content of student speech on District-approved social media, if reasonably related to legitimate pedagogical concerns. Staff or students who post prohibited content shall be subject to appropriate disciplinary action.

The District is committed to protecting the privacy rights of students, parents/guardians, staff, volunteers, Board members, and other individuals on District-approved social media sites. District employees ☒ and volunteers **[END OF OPTION]** are prohibited from posting or releasing confidential information about students, employees, volunteers, or District operations through social media, without appropriate consent (i.e., express written consent from the parent of a student, the affected employee or volunteer, or the Superintendent concerning District operations).

Retention of Public/Student Records

District communications that occur through the use of District-approved social media platforms/sites – including staff members' ☒/volunteers' **[END OF OPTION]** use of social media with school-sponsored activities, and comments, replies, and messages received from the general public – may constitute public records or student records, and all such communications will be maintained (i.e., electronically archived) in accordance with the Board's adopted record retention schedule and all applicable State statutes. (See AG 8310A – Requests for Public Records)

Records that do not document the organization, functions, policies, decisions, procedures, operations, or other activities of the District do not become public records just because they are kept or maintained by the District under this policy.

[DRAFTING NOTE: Districts should only choose the following Option if they intend to approve individual District employees/volunteers using social media platforms, like Facebook or Twitter, that require professional pages to be

linked to personal pages as District-approved social media platforms. Districts are advised to discuss this Option with their local legal counsel before selecting it. Selection of this Option is not covered by Neola's warranty.]

~~☐ Staff members () and District-approved volunteers **[END OF OPTION]** cannot rely on social networking platforms (e.g., Facebook, Twitter, etc.) to sufficiently fulfill potential records retention requirements because these platforms, in general, do not guarantee retention and are unlikely to assist in the production of third-party comments and communications that have been edited, deleted, or are otherwise no longer available. Consequently, District employees () and volunteers **[END OF OPTION]** who use such social media accounts for professional communications must operate them in accordance with the general archiving practices and technology instituted by the District so records remain within the District's control and are appropriately retained.~~

[END OF OPTION]

If a staff member uses District-approved social media platforms/sites in the classroom for educational purposes (i.e., classroom instruction), the staff member must consult with the Principal concerning whether such use may result in the creation of public and/or education records that must be maintained (i.e., electronically archived) for a specific period of time.

[DRAFTING NOTE: Select Option 5, 6, 7, 8, or 9]

Employees' Use of District Technology Resources to Access Social Media for Personal Use

~~☐ **[OPTION #5]**~~

~~Employees () and District-approved volunteers **[END OF OPTION]** are prohibited from using District technology resources (as defined in Bylaw 0100) to access social media for personal use.~~

☒ **[OPTION #6]**

Employees () and District-approved volunteers **[END OF OPTION]** are prohibited from using District technology resources (as defined in Bylaw 0100) to access social media for personal use during work hours.

They are reminded that the District may monitor their use of District technology resource.

☐ **[OPTION #7]**

Employees () and District-approved volunteers **[END OF OPTION]** are permitted to use District technology resources (as defined in Bylaw 0100) to access social media for personal use during breaks, mealtimes, and before and after scheduled work hours.

They are reminded that the District may monitor their use of District technology resource.

☒ **[OPTION #8]**

~~Employees **(X)** and District-approved volunteers **[END OF OPTION]** are permitted to use District technology resources (as defined in Bylaw 0100) to access social media for personal use during work hours, provided it does not interfere with the employee's **(X)**/volunteer's **[END OF OPTION]** job performance.~~

They are reminded that the District may monitor their use of District technology resource.

☐ **[OPTION #9]**

~~Employees () and District-approved volunteers **[END OF OPTION]** are permitted to use District technology resources (as defined in Bylaw 0100) to access social media for personal use, provided the employee's ()/volunteer's **[END OF OPTION]** use during work hours does not interfere with his/her job performance.~~

~~They are reminded that the District may monitor their use of District technology resource.~~

[END OF OPTIONS 5-9]

[DRAFTING NOTE: Select Option 10, 11, or 12]

Employees' Use of Personal Communication Devices at Work to Access Social Media for Personal Use

☐ **[OPTION #10]**

Employees are prohibited from using personal communication devices to access social media for personal use during work hours.

☒ **[OPTION #11]**

Employees are permitted to use personal communication devices to access social media for personal use during breaks and mealtimes.

[X-] [OPTION #12]

Employees are permitted to use personal communication devices to access social media for personal use during work hours, provided it does not interfere with the employee's job performance.

[END OF OPTIONS 10-12]

Employees (**X-**) and District-approved volunteers **[END OF OPTION]** are prohibited from posting or engaging in communication that violates State or Federal law, Board policies, or administrative procedures. If an employee/volunteer's communication interferes with his/her ability to effectively perform his/her job, or violates State or Federal law, Board policies, or administrative procedures, the District may impose disciplinary action and/or refer the matter to appropriate law enforcement authorities.

This policy and its corresponding administrative guideline will be reviewed and updated

(**X-**) as necessary

() on an annual basis.

© Neola 2019

Legal

20 U.S.C. 1232g

34 C.F.R. Part 99

Protecting Children in the 21st Century Act, Pub. L. No. 110-385, Title II, Stat. 4096 (2008)

Children's Internet Protection Act (CIPA), Pub. L. No. 106-554 (2001)